

Essential Services Operation Act, 1957

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.7
2. Some Nepal Acts Amendment Act, 2075 to Make Consistent with the Constitution of Nepal 2075.11.19

Act No. 15 of the Year 2014

An Act Made to Maintain Uninterrupted Operation of Essential Services

Whereas it has become necessary to make essential and appropriate provisions to maintain uninterrupted operation of essential services so as not to disrupt the normal living conditions of the general public, this Act is hereby enacted and promulgated by His Majesty the King. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Essential Services Operation Act, 2014".

(2) This Act shall apply throughout Nepal.

(3) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act,-

(a) "Essential service" means the following services:

- (1) Postal, telegraph or telephone service,
- (2) Transport service for carrying passengers or goods by water, land or air,
- (3) Service related to the work of maintaining, operating or repairing an airport or aircraft,
- (4) Service related to the work of loading, unloading, storing or warehousing goods at an airfield, railway station or government warehouse,
- (5) Printing or government press related service,
- (6) Any service of the defense arrangement of the Government of Nepal related to the production, storage, or distribution of arms, ammunition, or any other military supplies, and
- (7) Any other service specified by the Government of Nepal by publishing a notice in the Nepal Gazette.

(b) "Strike" means the cessation of work or the refusal to do or continue work, by pre-arrangement or by common consent collectively by all or some of the employees employed or appointed in any essential service. 3. Power of His Majesty's Government to Prohibit Strike: (1) If deemed necessary and appropriate for the public interest, His Majesty's Government may, by an order published in the Nepal Gazette, prohibit a

strike in any essential service specified in that order.

(2) Every order issued under sub-section (1) shall remain in force for up to six months.

(3) After His Majesty's Government has issued an order under sub-section (1)-

(1) No person employed in any essential service specified in that order shall engage in a strike or participate or continue to participate therein.

(2) Any strike carried out or declared to be carried out by persons employed in such service before or after the issuance of such order shall be deemed illegal. Added by the Some Nepal Acts Amendment Act, 2075 to Make Consistent with the Constitution of Nepal.3A.

Power of Provincial Government to Prohibit Strike: (1) If deemed necessary and appropriate for the public interest, the provincial government may, by an order published in the provincial gazette, prohibit a strike in any essential service specified in that order. (2) Notwithstanding anything written in sub-section (1), where the Government of Nepal has issued an order prohibiting a strike in any essential service effective throughout Nepal, the provincial government shall not be required to issue an order prohibiting a strike in such service, and the order issued by the Government of Nepal under section 3 shall be implemented by the provincial government in the same manner as an order under sub-section (1). (3) An order under sub-section (1) shall remain in force for up to six months. (4) After the provincial government has issued an order under sub-section (1):- (a) No person employed in any essential service specified in that order shall engage in a strike or participate or continue to participate therein. (b) Any strike carried out or declared to be carried out by persons employed in such service before or after the issuance of such order shall be deemed illegal. 4. Punishment for Person Who Engages in, Participates in, or Continues to Participate in a Prohibited Strike: If any person engages in, participates in, or continues to participate in any strike prohibited under this Act, such person shall be liable to imprisonment for up to six months or a fine of up to Rs. 200.? (two hundred) or both. 5. Punishment for Abettor: If any person abets another to engage in, participate in, or continue to participate in any strike prohibited under this Act, such person shall be liable to imprisonment for up to one year or a fine of up to Rs. 1,000.? (one thousand) or both. 6. Punishment for Person Who Provides Financial Assistance for a Prohibited Strike: If any person knowingly provides any financial assistance for any strike prohibited under this Act, such person shall be liable to imprisonment for up to one year or a fine of up to Rs. 1,000.? (one thousand) or both. 7. To Apply in Case of Conflict with Other Nepal Laws: Notwithstanding anything written in the prevailing Nepal laws, matters written in this Act and in the order issued under this Act shall be according to this Act and this order, and in other matters, it shall be according to the prevailing Nepal laws.